

Multiple Choice (10 marks)

1. Neighbor says his home repair contract needs to be discharged because of frustration of purpose. Which of the following is not required for this to be discharged for this reason?
 - (a) A supervening event.
 - (b) That was reasonably foreseeable at time of contract formation.
 - (c) Which completely or almost completely destroys the purpose of the contract.
 - (d) The purpose of the contract was understood by both parties.
2. There is a grand jury proceeding underway for a local businessman. What is not true about grand jury proceedings?
 - (a) The proceedings are conducted in secret.
 - (b) There is no right to counsel.
 - (c) There is a right to Miranda warnings.
 - (d) There is no right to have evidence excluded.
3. There is a voting law that is going to be reviewed by the court. If the law is upheld, what must be true?
 - (a) The law is necessary to achieve a compelling government purpose.
 - (b) The law is substantially related to an important government purpose.
 - (c) The law is rationally related to a legitimate government purpose.
 - (d) The law is substantially related to a legitimate government purpose.
4. Where a client accepts the services of an attorney without an agreement concerning the amount of the fee, there is
 - (a) An implied-in-fact contract.
 - (b) An implied-in-law contract.
 - (c) An express contract.
 - (d) No contract.
5. Which of the following is not a correct form of real evidence?
 - (a) Weapons or implements
 - (b) marks, scars, wounds
 - (c) Photographs
 - (d) Hearsay

True / False (10 marks)

Answer True or False

6. True or False: An ex post facto law allows for retroactive punishment based on legislative acts without a trial.
7. True or False: The purpose of the contract must be clearly stated for frustration of purpose to apply.
8. True or False: A defendant charged with first-degree murder is entitled to a list of prospective jurors only upon court order.
9. True or False: The death of a party automatically terminates all contracts involved.
10. True or False: To prove a discriminatory classification, a discriminatory effect alone is insufficient to demonstrate intent to discriminate.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the constitutional rationale for Congress enacting a statute that prohibits racial discrimination in real estate transactions, focusing on the enforcement provisions of the Thirteenth Amendment.
12. Discuss the concept of compensatory damages in constitutional law and analyze how they serve to restore the nonbreaching party to the position they would have been in had the contract been fully performed.

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